BY ORDER OF THE COMMANDER
UNITED STATES AIR FORCES
EUROPE-AIR FORCES AFRICA

UNITED STATES AIR FORCES
EUROPE-AIR FORCES AFRICA
INSTRUCTION 51-403

26 OCTOBER 2026

Law

NEGOTIATING, CONCLUDING, AMENDING, TERMINATING, REPORTING AND MAINTAINING INTERNATIONAL AGREEMENTS AND NON-BINDING INSTRUMENTS

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This instruction implements DAFI 51-403, *International Agreements*, and complies with Department of Defense (DoD) Instruction 5530.03, *International Agreements*, and AFRICOM Instruction (ACI) 5800.05, *International Agreements*. This is the only USAFE-AFAFRICA instruction concerning international agreements and non-binding instruments, and it is applicable to all USAFE-AFAFRICA staff agencies, commands, units, and activities. This publication applies to the United States Space Force, Air Force Reserve Command units and to the Air National Guard of the United States. This instruction establishes procedures for negotiating, concluding, amending, terminating, reporting, and maintaining international agreements and non-binding instruments within USAFE-AFAFRICA's area of responsibility. It does not create substantive authority for this purpose. Do not begin negotiations with any foreign government or international organization without first coordinating with USAFE-AFAFRICA/A5/8. Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) using Department of the Air Force (DAF) Form 847, *Recommendation for Change of Product*; route DAF Forms 847 from the field through the appropriate functional's chain of command. Ensure all records generated as a result of processes prescribed in this publication adhere to AFI 33-322, *Records Management and Information Governance Program*, and are disposed in accordance with the Air Force Records Disposition Schedule, which is located in the Air Force Records Information Management System. Submit requests for waivers through the chain of command to the

publication OPR for non-tiered compliance items. This publication may not be supplemented or further implemented or extended.

SUMMARY OF CHANGES

Updates USAFE-AFAFRICA guidance to comply with DAFI 51-403. Provides a more detailed breakdown of responsibilities, including updated roles for USAFE-AFAFRICA/A5/8, JAI, FM, A2, and A4R divisions. Clarifies responsibilities and coordination requirements at various levels within USAFE-AFAFRICA. Adds definitions and procedures relevant to non-binding instruments. Emphasizes the need for obtaining prior written approval before negotiating an international agreement, and before concluding, amending, or terminating an international agreement or non-binding instrument through coordination with USAFE-AFAFRICA/A5I. Updated attachments provide more detailed examples and checklists for creating and reporting international agreements and non-binding instruments.

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1. General.

1.1. This instruction is procedural only. It provides USAFE-AFAFRICA policy and process to obtain and exercise procedural authority to negotiate, amend, conclude, and terminate international agreements and non-binding instruments. In addition to procedural authority, all international agreements and non-binding instruments must have substantive legal authority.

1.2. Definitions.

1.2.1. Chapeau Agreement. A bilateral agreement that establishes legally binding commitments under international law affecting major aspects of cooperation such as logistical support, liability, and property rights, including intellectual property rights, that are applicable to non-binding instruments in the course of mutual defense activities when invoked by or for that applicable arrangement.

1.2.2. Conclusion. The act of signing, initialing, responding to, or otherwise indicating the acceptance of an international agreement or non-binding instrument by a department or agency of the U.S. Government.

1.2.3. International Agreement. Except as otherwise noted in Attachment 1 of DAFI 51-403, any agreement concluded with one or more foreign governments (including their agencies, instrumentalities, or political subdivisions) or with an international organization that meets each of the following three criteria:

1.2.3.1. Is signed or agreed to (including oral commitments) by personnel of any DoD component, or by representatives of the Department of State or any other department or agency of the US Government.

1.2.3.2. Signifies the intent of the parties to be bound under international law.

1.2.3.3. Is denominated as an international agreement or as a memorandum of understanding, memorandum of agreement, memorandum of arrangement, exchange of notes, exchange of letters, technical arrangement, protocol, note verbale, aide-memoire, agreed minute, arrangement, statement of intent, letter of intent, statement of understanding, or any other name connoting a similar legal consequence.

1.2.4. Negotiation. Communication by any means of a position or an offer, on behalf of the United States, the DoD, or any officer or organizational element thereof, to an agent or representative of a foreign government, including an agency, instrumentality or political of subdivision thereof, or of an international organization, in such detail that the acceptance in substance of such position or offer would result in an international agreement or non-binding instrument. The term includes any such communication, even though the agreement may be conditioned on later approval by the responsible authority. The term also includes the presentation of a draft agreement or other document, the acceptance of which would constitute an agreement or non-binding instrument, as well as discussions concerning any U.S. or foreign government or international organization draft document whether or not titled “agreement.” The term does not include preliminary or exploratory discussions, consultations, or routine meetings where no proposed texts or draft documents are presented, so long as such discussions or meetings are conducted with the understanding that the views communicated do not and will not bind or commit any side, legally or otherwise.

1.2.5. Non-binding Instrument. Any instrument concluded with one or more foreign governments (including their agencies, instrumentalities, or political subdivisions) or with an international organization, that does not meet the definition of International Agreement in **paragraph 1.2.3** of this instruction.

1.2.6. Procedural legal authority. The authority necessary to negotiate and conclude international agreements and non-binding instruments in accordance with U.S. law and policy.

1.2.7. Substantive legal authority. The specific legal authority that authorizes USAFE-AFAFRICA to enter into and carry out each obligation or undertaking in the international agreement or non-binding instrument. Sources include the United States Constitution, federal statutes, or other international agreements.

1.3. USAFE-AFAFRICA personnel interested in developing an international agreement or non-binding instrument or who have been approached by a foreign partner to develop an international agreement or a non-binding instrument will immediately consult with both USAFE-AFAFRICA/A5I and their servicing legal office to determine what procedural and substantive legal authorities are available or may be made available for the desired international agreement or non-binding instrument.

1.4. Policy Significance. International agreements and non-binding instruments that are policy significant require additional coordination outside of USAFE-AFAFRICA. Paragraphs **3.1.2** and **3.2.1** of this instruction contains additional information regarding staffing requirements. Policy significance is described in paragraph 2.5.1. and Attachment 1 of DAFI 51- 403. Some examples of policy significant matters include the status of U.S. Armed Forces and DoD civilian personnel in foreign countries; access to foreign territories; access to or use of foreign government-owned land or structures on a reimbursable or non-reimbursable basis; construction or the relinquishment of the right of use of land or structures on foreign government-owned facilities; creation of security commitments, assurances, or arrangements currently not assumed by the U.S. in existing treaties or creation or alteration of existing mutual security or defense arrangements; unusual or uncommon legal issues or significant new legal precedents; cooperative production of military equipment or cooperation in research, development, test, evaluation or production of defense articles, services or technology; cooperative or reciprocal logistic support, including shared use of equipment, facilities, and services; and cost sharing provisions.

1.5. Obtaining and Executing Procedural Authority.

1.5.1. Procedural Authority to Negotiate, Amend, Conclude or Terminate International Agreements.

1.5.1.1. USAFE-AFAFRICA personnel must always obtain written delegation of authority as required in this instruction before negotiating, amending, concluding or terminating an international agreement. **Paragraph 4** and **Attachment 3** of this instruction contain more specific guidance.

1.5.1.2. AFPD 51-4 and DAFI 51-403 delegate to Commander, USAFE-AFAFRICA, certain authorities with respect to international agreements that have been delegated to the Secretary of the Air Force. Separate from the delegation of authority from the Secretary of the Air Force, on a case-by-case basis, USEUCOM, USAFRICOM, and

other agencies or commands may delegate to Commander, USAFE-AFAFRICA, authority regarding international agreements held by those commands or agencies. USAFE-AFAFRICA personnel interested in negotiating, amending, concluding or terminating an international agreement must consult with USAFE-AFAFRICA/A5I and their servicing legal office prior to taking any action in order to determine if appropriate authority is available.

1.5.1.3. Redelegation of Authority.

1.5.1.3.1. Commander, USAFE-AFAFRICA, upon recommendation from USAFE-AFAFRICA/A5/8, will consider redelegating authority described in DAFI 51-403 to commanders of USAFE-AFAFRICA subordinate units.

1.5.1.3.2. Delegations of authority from USEUCOM, USAFRICOM, or other agencies or commands must be reviewed on a case-by-case basis to determine if re-delegation is permitted. If permitted, Commander, USAFE- AFAFRICA, upon recommendation from USAFE-AFAFRICA/A5/8, will consider redelegating authority to commanders of USAFE-AFAFRICA subordinate units.

1.5.1.3.3. Staff actions "for the commander" are not redelegations.

1.5.2. Procedural Authority to Negotiate, Amend, Conclude or Terminate Non-Binding Instruments.

1.5.2.1. USAFE-AFAFRICA personnel interested in negotiating, amending, concluding, or terminating a non-binding instrument may proceed in accordance with the process described in **paragraph 4** and **Attachment 4** of this instruction.

1.5.2.2. Commander, USAFE-AFAFRICA designates USAFE-AFAFRICA/A5/8 to conclude new non-binding instruments and amend or terminate existing non-binding instruments and authorizes USAFE-AFAFRICA/A5/8 to designate other USAFE-AFAFRICA directors and commanders of subordinate units to conclude new non-binding instruments and amend or terminate existing non-binding instruments. Personnel so designated may not further designate other personnel to exercise this authority unless approved by USAFE-AFAFRICA/A5/8. Unless otherwise further directed, USAFE-AFAFRICA/A5/8 designates USAFE-AFAFRCAI/A5I to carry out responsibilities assigned in this instruction to USAFE-AFAFRICA/A5/8.

1.5.2.3. USAFE-AFAFRICA personnel may not conclude a new non-binding instrument, or amend or terminate an existing non-binding instrument, unless properly designated to do so as required in this instruction.

2. Basic Requirements. USAFE-AFAFRICA personnel shall:

2.1. General.

2.1.1. Fully comply with this instruction when developing, amending, concluding or terminating international agreements and non-binding instruments.

2.1.2. Negotiate and conclude only written international agreements and non-binding instruments, and amendments or termination thereof. Oral international agreements and non-binding instruments, and oral amendments or terminations thereof, are not authorized unless specifically approved by USAFE-AFAFRICA A/5/8.

2.1.3. Coordinate as required by this instruction if USAFE-AFAFRICA personnel receive a proposed draft international agreement or non-binding instrument or amendment or termination thereof from a foreign partner.

2.2. International Agreements.

2.2.1. The process to negotiate, amend, conclude or terminate an international agreement is complex and usually involves review or delegations of authority from higher headquarters. Refer to **paragraph 4** and **Attachment 3** of this instruction for details of the process and maintain constant coordination with USAFE-AFAFRICA/A5I and USAFE-AFAFRICA/JAI.

2.2.2. Obtain written delegation of authority as required in **paragraph 1.5.1** of this instruction prior to negotiating, amending, concluding, or terminating an international agreement.

2.2.3. Coordinate any proposed new international agreement and any proposed amendment or termination of an existing international agreement by submitting an ETMS2 tasker or similar tracking program used by the command. At a minimum, include USAFE-AFAFRICA/A5IO, JAI, and FM on coordination for all new international agreements, and on coordinate for amendment or termination of an existing international agreement. In addition, include USAFE-AFAFRICA/A4R for coordination if the matters relate to logistics readiness; the Foreign Disclosure Office (FDO) if the matters involve release of classified or controlled unclassified military information to foreign representatives; and USAFE-AFAFRICA/A2 for all intelligence-related matters. Include other staff directorates and subordinate units if they are directly affected by or have equity in the international agreement. The ETMS2 tasker will include all the information listed in **paragraph 4.2.2.3** of this instruction.

2.3. Non-binding Instruments.

2.3.1. Refer to **paragraph 4** and **Attachment 4** of this instruction for the process to negotiate, amend, conclude or terminate a non-binding instrument.

2.3.2. Obtain a Statement of Non-Applicability (SNA) of DODI 5530.03, DAFI 51-403 or ACI 5800.05 from USAFE-AFAFRICA/A5/8 before concluding a new non-binding instrument, or amendment or termination of an existing non-binding instrument.

2.3.3. Implementing agreements, annexes, project agreements, or other subsidiary agreements implemented under an umbrella or other master international agreement (such as a chapeau agreement) require coordination with DoD/GC even if non-binding.

3. Responsibilities.

3.1. USAFE-AFAFRICA Headquarters Staff.

3.1.1. Director of Plans and Programs (USAFE-AFAFRICA/A5/8) will:

3.1.1.1. Monitor all international agreements and non-binding instruments, and amendments and terminations thereof, for USAFE-AFAFRICA and subordinate units.

3.1.1.2. Provide recommendations as appropriate to further delegate authority to subordinate commanders to negotiate and conclude international agreements, and amendment or termination thereof.

3.1.1.3. In accordance with **paragraph 1.5.2.2** designate as appropriate USAFE-AFAFRICA directors or commanders of subordinate units to conclude non-binding instruments, and amendment or termination thereof.

3.1.1.4. Assist USAFE-AFAFRICA staff elements and subordinate units to prepare draft international agreements and non-binding instruments and amendments, develop negotiating positions, and as appropriate, lead negotiating teams.

3.1.1.5. Provide policy advice and assistance to staff elements and subordinate units regarding international agreements and non-binding instruments, and forward for higher-level attention questions or problems that cannot be resolved at USAFE-AFAFRICA level.

3.1.1.6. With advice and assistance from the USAFE-AFAFRICA/JAI, review proposed international agreements and non-binding instruments, and proposed amendment or termination thereof, to determine if such proposed document is within Commander, USAFE-AFAFRICA's authority.

3.1.1.7. Determine after review and consultation with USAFE/JAI, whether a document is exempt from DODI 5500.03, DAFI 51-403, or ACI 5800.05, and if so, issue an SNA.

3.1.1.8. Maintain a master index and an electronic central repository accessible to USAFE-AFAFRICA staff and subordinate units that includes:

3.1.1.8.1. International agreements and non-binding instruments concluded by USAFE-AFAFRICA and subordinate units, including the negotiating history and supporting documentation required for reporting concluded international agreements. Such records will be maintained for the duration of the agreement or instrument or until they have no further legal significance.

3.1.1.8.2. International agreements and non-binding instruments concluded by any other party that relate to or affect USAFE-AFAFRICA operations.

3.1.1.9. Coordinate reporting of all international agreements concluded under authority delegated to USAFE-AFAFRICA.

3.1.1.10. Assist proponents of international agreements and non-binding instruments to coordinate as needed with Combatant Command country desk officers and U.S. Embassy country teams and ensure compliance with paragraph 2.6. of DAFI 51-403.

3.1.1.11. Ensure international agreements and non-binding instruments are concluded in English unless the criteria of paragraph 6 of DAFI 51- 403 are met.

3.1.2. The Office of the Staff Judge Advocate, International Law Division (USAFE-AFAFRICA/JAI) will:

3.1.2.1. Coordinate as needed with USAFE-AFAFRICA/A5I, other USAFE-AFAFRICA staff elements, and relevant legal offices regarding matters related to international agreements and non-binding instruments.

3.1.2.2. Assist in drafting international agreements and non-binding instruments, and as required, participate in negotiations as the legal representative.

3.1.2.3. Prepare and provide legal memoranda for international agreements that will be concluded at the USAFE-AFAFRICA level and determine whether agreements conform to international law and U.S. law and policy. These legal memoranda will specify the legal authority that authorizes USAFE-AFAFRICA to enter into and carry out the agreement, specifying both the procedural authority and the substantive legal authority for each obligation undertaken on behalf of the U.S. under the agreement.

3.1.2.4. Provide legal review of non-binding instruments that will be concluded at the USAFE-AFAFRICA level and determine if instruments conform to international law and U.S. law and policy. The legal review will specify the legal authority that authorizes the subordinate command or installation to enter into and carry out the non-binding instrument, specifying both the procedural authority and the substantive legal authority for the activities described in the non-binding instrument.

3.1.2.5. Route requests for review of policy significant international agreements and non-binding instruments through the relevant COCOM or HAF/JAO as appropriate.

3.1.2.6. Route requests for review of implementing agreements, annexes, project agreements, or other subsidiary agreements implemented under an umbrella or other master international agreement (such as a chapeau agreement) for DoD/GC coordination that provides, among other relevant matters, a detailed legal review of why the proposed subsidiary agreement is within the scope of the umbrella or master agreement and may be concluded under the terms of such agreement.

3.1.3. Director of Financial Management and Comptroller (USAFE-AFAFRICA/FM) will:

3.1.3.1. Advise and assist in formulating and coordinating international agreement provisions which pertain to funding, billing, and payment procedures for international agreements involving financial commitments and cost-sharing arrangements.

3.1.3.2. Provide fiscal memoranda for international agreements that that will be concluded at the USAFE-AFAFRICA level that involve expenditure of U.S. funds or resources or receipt of foreign funds or resources. The financial review will include an examination of financial accounting procedures and budgetary impact. If no funds are expended, a no-cost financial review and fiscal memorandum as required will be provided, stating expenditure of U.S. funds is not required.

3.1.3.3. Provide an evaluation of the financial review performed by the base level comptroller for international agreements that will not be concluded at the USAFE-AFAFRICA level.

3.1.4. Director of Intelligence, Surveillance, and Reconnaissance (USAFE-AFAFRICA/A2) will:

3.1.4.1. Coordinate on all intelligence-related international agreements.

3.1.4.2. Determine releasability to foreign nationals of classified and controlled unclassified military information to foreign representatives.

3.1.5. All USAFE-AFAFRICA Staff Elements will:

3.1.5.1. Propose, draft, review and coordinate international agreements and non-binding instruments as needed and as directed.

3.1.5.2. Comply with this instruction and all other relevant U.S. law and policy regarding international agreements and non-binding instruments.

3.2. Subordinate Commands and Installations.

3.2.1. Installation and Subordinate Command Legal Offices will:

3.2.1.1. Coordinate as needed with supported command and installation activities regarding matters related to international agreements and non-binding instruments.

3.2.1.2. Assist in drafting international agreements and non-binding instruments, and as required, participate in negotiations as the legal representative.

3.2.1.3. Prepare and provide legal memoranda for international agreements that will be concluded by supported command or installation activities and determine whether agreements conform to international law and U.S. law and policy. These legal memoranda will specify the legal authority that authorizes the supported command or installation to enter into and carry out the agreement, specifying both the procedural authority and the substantive legal authority for each obligation undertaken on behalf of the U.S. under the agreement.

3.2.1.4. Provide legal review of non-binding instruments that will be concluded by supported command and installation activities and determine if instruments conform to international law and U.S. law and policy. The legal review will specify the legal authority that authorizes the subordinate command or installation to enter into and carry out the non-binding instrument, specifying both the procedural authority and the substantive legal authority for the activities described in the non-binding instrument.

3.2.1.5. Route requests for review of policy significant international agreements and non-binding instruments through USAFE-AFAFRICA/JAI.

3.2.1.6. Route requests for review of implementing agreements, annexes, project agreements, or other subsidiary agreements implemented under an umbrella or other master international agreement (such as a chapeau agreement) for DoD/GC coordination via USAFE-AFAFRICA/JAI that provides, among other relevant matters, a detailed legal review of why the proposed subsidiary agreement is within the scope of the umbrella or master agreement and may be concluded under the terms of such agreement.

3.2.1.7. Coordinate with USAFE-AFAFRICA/JAI as needed during review of international agreements and non-binding arrangements.

3.2.1.8. Brief all commanders and proponents of agreements on authorities and approvals required to enter into international agreements and non-binding instruments.

3.2.2. Base Comptroller Offices will:

3.2.2.1. Advise and assist in formulating and coordinating agreement provisions which pertain to funding, billing, and payment procedures for agreements involving financial commitments and cost-sharing arrangements.

3.2.2.2. Provide fiscal memoranda for international agreements that that will be concluded at the base level that involve expenditure of US funds/resources or receipt of foreign funds/resources. The financial review will include an examination of financial accounting procedures and budgetary impact. If no funds are expended, a no-cost financial review/fiscal memorandum as required will be provided, stating expenditure of United States funds is not required.

3.2.2.3. Coordinate with USAFE-AFAFRICA/FM as needed.

3.2.3. All Subordinate Commands and Installations will:

3.2.3.1. Propose, draft, review and coordinate international agreements and non-binding instruments as needed and as directed.

3.2.3.2. Comply with this instruction and all other relevant U.S. law and policy regarding international agreements and non-binding instruments.

4. Procedures.

4.1. Planning.

4.1.1. Proper planning and staffing will ensure international agreements and non-binding instruments, and amendments thereto contain sufficient detail to avoid misunderstanding or disputes in interpretation or implementation. The process is often complex and lengthy, sometimes driven by the partner nation's timeline. Responsible planning includes ensuring adequate time for negotiation and required staffing.

4.1.2. The functional or organizational element that is most knowledgeable of the subject matter of the document under negotiation normally acts as negotiator for USAFE-AFAFRICA. The USAFE-AFAFRICA negotiator will participate fully in the negotiating process and remain the OPR for the international agreement or non-binding instruments.

4.2. Procedures Specific to International Agreements.

4.2.1. Refer to **Attachment 3** for guidance on the staffing process for international agreements.

4.2.2. Preliminary Coordination.

4.2.2.1. USAFE-AFAFRICA personnel may not conduct negotiations regarding a new or existing international agreement without an appropriate delegation of authority as described in **paragraph 1.5.1** of this instruction.

4.2.2.2. USAFE-AFAFRICA/A5/8, in coordination with USAFE-AFAFRICA/JAI, will determine if USAFE-AFAFRICA has delegated authority to negotiate, and if not, coordinate necessary delegation. USAFE-AFAFRICA/A5/8 will also determine if the proposed new international agreement, or amendment or termination of an existing agreement, is policy significant requiring further coordination outside of USAFE-AFAFRICA and will work with the proponent to build a negotiating team and develop a negotiating strategy.

4.2.2.3. Per **paragraph 2.2.3**, the USAFE-AFAFRICA proponent of the proposed international agreement will prepare and staff in ETMS2 a request for authority to negotiate that includes the following:

4.2.2.3.1. Bullet Background Paper (BBP) explains the proposed international agreement, the reasons the document is necessary, and why existing agreements or instruments are not sufficient.

4.2.2.3.2. Draft of the proposed international agreement. Use the checklist at **Attachment 2** in developing international agreements to ensure the requirements are fulfilled.

4.2.2.3.3. Draft legal memorandum from the supporting legal office. The legal memorandum will include the legal authority to enter into and carry out the proposed document, specifying both the procedural authority and the substantive legal authority, and an explanation of other relevant legal considerations.

4.2.2.3.4. Draft fiscal memorandum base comptroller office or USAFE-AFAFRICA/FM for international agreements involving the expenditure of U.S. funds or resources or receipt of foreign funds or resources.

4.2.2.3.5. If necessary, certification from the FDO for disclosure of classified and controlled unclassified military information to foreign representatives.

4.2.2.3.6. If necessary, a statement of environmental impact. Consult with USAFE/JAI and AFIMSC Det 4 to determine if a statement of environmental impact is necessary.

4.2.3. Preliminary Discussions. USAFE-AFAFRICA proponents of new international agreements or amendments or termination thereof may conduct preliminary discussions with foreign representatives as necessary to determine which party will draft a proposed new agreement or amendments, the general issues to be included, and the scope of the proposals. These discussions help formulate a draft international agreement that will be submitted for coordination. Preliminary discussion is not negotiation but is merely intended to explore the scope of a proposed new international agreement, or amendment or termination of an existing international agreement.

4.2.4. Draft Agreement.

4.2.4.1. As early in the process as possible, the proponent should develop a USAFE-AFAFRICA draft of the proposed new international agreement or amendments to an existing agreement. The USAFE-AFAFRICA draft may be developed from a draft provided by a foreign partner or may be a draft developed by the proponent in coordination with the proponent's supporting legal office. Proponents are encouraged to coordinate with USAFE-AFAFRICA/A5 and USAFE-AFAFRICA/JAI throughout the process of developing the USAFE-AFAFRICA draft.

4.2.4.2. Per paragraphs **2.2.3** and **4.2.2.3** of this instruction, the proponent will coordinate the USAFE-AFAFRICA draft agreement via ETMS2.

4.3. Conducting Negotiations.

4.3.1. Before initiating negotiations with foreign representatives, staff and subordinate commanders intending to obtain an international agreement will obtain approval through USAFE-AFAFRICA/A5/8.

4.3.2. USAFE-AFAFRICA personnel delegated authority to negotiate an international agreement as provided in **paragraph 1.5** or intending to negotiate a non-binding instrument should, in coordination with USAFE-AFAFRICA/A5/8, consider who should participate as part of the negotiating team, and ensure that legal representatives and subject matter experts are included as appropriate.

4.3.3. The USAFE-AFAFRICA negotiator submits the coordinated USAFE-AFAFRICA draft to the foreign partner for agreement or counterproposal. If the foreign partner makes comments or a counterproposal, the USAFE-AFAFRICA negotiator considers the matters presented by the foreign partner, fully coordinates the USAFE-AFAFRICA response or counterproposal, including appropriate legal and subject matter expert review, and submits the coordinated USAFE-AFAFRICA response or counterproposal to the foreign partner. During negotiating sessions, the USAFE-AFAFRICA negotiator may agree in principle to changes in the draft agreement, provided it is made clear that agreement to changes is conditional upon final staff approval. This process continues until the parties reach agreement in principle (sometimes referred to as an ad referendum agreement).

4.4. Negotiating History.

4.4.1. International Agreements. The USAFE-AFAFRICA negotiator who led negotiations of an international agreement must maintain and forward to USAFE-AFAFRICA/A5/8 all correspondence, documents, emails, drafts, internal working papers, minutes of meetings, and any other document that records the history of the negotiation process within 30 days of the completion of the event. Such records will be maintained for the duration of the agreement, until it no longer has legal significance, or for 10 years, whichever is longer

4.4.2. Non-Binding Instruments. It is best practice to retain similar documents for negotiations of non-binding instruments, and such papers should be provided to USAFE-AFAFRICA/A5/8 for retention as appropriate.

4.5. Concluding an International Agreement or Non-Binding Instrument.

4.5.1. When agreement in principle has been reached, and prior to signature by any party, the USAFE-AFAFRICA negotiator submits a request through USAFE-AFAFRICA/A5/8 for authority to conclude the international agreement or designation to conclude the non-binding instrument.

4.5.2. Prior to signing an international agreement or non-binding instrument that is policy significant, the servicing legal office must route a request for review through USAFE-AFAFRICA/JAI.

4.5.3. Prior to signing an implementing agreement, annex, project agreement, or other subsidiary agreement implemented under an umbrella or other master international agreement (such as a chapeau agreement), the servicing legal office must route a request for DoD/GC coordination via USAFE-AFAFRICA/JAI that provides, among other relevant matters, a detailed legal review of why the proposed subsidiary agreement is within the scope of the umbrella or master agreement and may be concluded under the terms of such agreement.

4.5.4. International Agreements must be lawfully concluded and reported as outlined in **Attachment 2**. To ensure international agreements are lawfully concluded and reported within the strict time limits established in the Case-Zablocki Act and DoW and Air Force policy, at a minimum, the request to conclude an international agreement will contain:

4.5.4.1. The agreement in principle formatted for signature.

4.5.4.2. A final fiscal memorandum for international agreements that involve expenditure of U.S. funds or resources or receipt of foreign funds or resources. USAFE-AFAFRICA/FM or base level comptroller offices will provide the appropriate level of financial review for all proposed international agreements. The financial review will include an examination of financial accounting procedures.

4.5.4.3. A final legal memorandum that specifies the legal authority that authorizes USAFE-AFAFRICA to enter into and carry out the agreement, specifying both the procedural authority under this instruction and the substantive legal authority for each obligation undertaken on behalf of the United States under the agreement.

4.5.4.4. The staff principal or subordinate commander responsible for execution and maintenance of the international agreement throughout its duration.

4.5.4.5. Foreign language text certification memorandum if required.

4.5.5. To ensure non-binding instruments are lawfully concluded, at a minimum, the request for designation to conclude and for issuance of an SNA for a non-binding instrument will contain:

4.5.5.1. The agreement in principle formatted ready for signature.

4.5.5.2. A final legal review that includes the legal authority that authorizes the subordinate command or installation to enter into and carry out the non-binding instrument and specifies both the procedural authority and the substantive legal authority for the activities described in the non-binding instrument.

4.5.5.3. Documentation of all required procedures and coordination.

4.5.6. If changes result from further negotiations after authority or designation to conclude is granted, the changes must be submitted to USAFE-AFAFRICA/A5/8 for approval prior to signature.

4.6. Signature. The USAFE-AFAFRICA signature should be the last signature affixed to the international agreement or non-binding instrument. Significantly for international agreements, U.S. reporting time requirements begin with date of the last signature. If the agreement must be signed last by a foreign representative, the official delegated authority or designated to conclude will request approval from USAFE-AFAFRICA/A5/8 explaining the requirements for the foreign representative to sign the agreement last and, where required, how they will ensure the reporting time requirements are met.

4.7. Language.

4.7.1. Unless otherwise approved by USAFE-AFAFRICA/A5/8, international agreements and non-binding instruments will be negotiated and concluded only in English and will contain the provision that the document is “signed, in duplicate, in the English language.”

4.7.2. Staff principals and subordinate commanders will coordinate with USAFE-AFAFRICA/A/5/8 if it appears that a foreign partner will insist on texts in a foreign language that are equally binding.

5. Format and Nomenclature.

5.1. To the extent feasible, USAFE-AFAFRICA will use a standard format for international agreements and non-binding instruments that conforms to international law and U.S. law and policy.

5.2. Terms used in the development of international agreements and non-binding instruments such as memoranda of understanding (MOU), memoranda of agreement or arrangement (MOA), exchange of notes (EON), exchange of letters (EOL), technical agreement or arrangement (TA), protocol, diplomatic note (DIPNOTE), note verbale, aide memoire, agreed minutes, letter of agreement or arrangement (LOA), statement of intent (SOI), letter of intent (LOI), statement of understanding (SOU), terms of reference (TOR) or any other name connoting a similar legal consequence do not carry an independent meaning outside the content of such agreement. In general, all may be used for international agreements or for non-binding arrangements, and the actual content determines if a document is an international agreement or a non-binding instrument.

PAUL P. TOWNSEND, Colonel, USAF
Director of Plans and Programs

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

ACI 5800.05, *International Agreements*

AFPD 51-4, *Operations and International Law*, 24 July 2018

DAFI 51-403, *International Agreements*, 8 February 2019

DoDI 5530.03, *International Agreements*, 4 December 2013

Prescribed Forms

None

Adopted Forms

DAF 847, *Recommendation for Change of Product*

Abbreviations and Acronyms

AFCEC—Air Force Civil Engineer Center

AFIMSC—Air Force Installation and Mission Support Center

BBP—Bullet Background Paper

COCOM—Combatant Command

DIPNOTE—Diplomatic Note

EOL—Exchange of Letters

EON—Exchange of Notes

ETMS2—Task Management Tool

FDO—Foreign Disclosure Office

LOA—Letter of Agreement or Arrangement

LOI—Letter of Intent

MOA—Memoranda of Agreement or Arrangement

MOU—Memoranda of Understanding

OPR—Office of Primary Responsibility

SNA—Statement of Non-Applicability

SOI—Statement of Intent

SOU—Statement of Understanding

TA—Technical Agreement or Arrangement

TOR—Terms of Reference

USAFRICOM—United States Africa Command

USEUCOM—United States European Command

Office Symbols

DoD/GC—Department of Defense General Counsel

USAFE-AFAFRICA/A2—Director of Intelligence. Surveillance and Reconnaissance

USAFE-AFAFRICA/A4R—Logistics Readiness

USAFE-AFAFRICA/A5/8—Director of Plans and Programs

USAFE-AFAFRICA/A5I—International Affairs Division

USAFE-AFAFRICA/A5IO—International Operations Branch

USAFE-AFAFRICA/JAI—International Law Division

Attachment 2

INTERNATIONAL AGREEMENT CHECKLIST

A2.1. Phase 1—Planning and Preliminary Coordination.

A2.1.1. Define the objective and determine requirements to attain the objective.

A2.1.2. Review **Attachment 3** for guidance on the process of staffing international agreements.

A2.1.3. Determine releasability to foreign nationals of classified and controlled unclassified military information to foreign representatives with USAFE-AFAFRICA/A2.

A2.1.4. Conduct preliminary discussions with foreign counterparts and determine who will draft the proposed agreement, issues to be covered, and scope of the agreement.

A2.1.5. Prepare a US-only internal draft agreement for USAFE-AFAFRICA coordination and approval.

A2.1.6. Request a financial review and a preliminary fiscal memorandum from the Base Comptroller Office of USAFE-AFAFRICA/FM, as appropriate, for international agreements that involve expenditure of US funds or resources or receipt of foreign funds or resources. The financial review will include an examination of financial accounting procedures

A2.1.7. Request a legal review and preliminary legal memorandum from the servicing legal office. The legal memorandum must specify the legal authority that authorizes USAFE-AFAFRICA to enter into and carry out the agreement, specifying both the procedural authority and the substantive legal authority for each obligation undertaken on behalf of the U.S. under the agreement.

A2.1.8. If necessary and with assistance from Air Force Civil Engineer Center (AFCEC), determine environmental impact of any action that will result from implementing the agreement.

A2.1.9. Staff USAFE-AFAFRICA draft and request authority to negotiate through USAFE-AFAFRICA/A5/8 via ETMS2.

A2.2. Phase 2—Negotiation.

A2.2.1. Provide a copy of the coordinated USAFE-AFAFRICA draft agreement to the foreign counterpart. Retain all documents, including background papers, legal memorandum, and financial review.

A2.2.2. Negotiate to reach an agreement in principle.

A2.2.3. Coordinate any revisions to the initial USAFE-AFAFRICA draft with appropriate USAFE-AFAFRICA staff and supporting legal offices.

A2.3. Phase 3—Concluding an Agreement (Signing of Agreement).

A2.3.1. Once agreement in principle has been reached, request authority to conclude through USAFE-AFAFRICA/A5/8.

A2.3.2. After receiving authority to conclude, the other party signs two originals and returns them to the designated USAFE-AFAFRICA signatory for countersignature. Always endeavor

for the USAFE-AFAFRICA signatory to sign last as Case-Zablocki Act reporting time limit begins on the date of the last signature, and the agreement must be received by the Office of the Assistant Legal Advisor for Treaty Affairs, Department of State not later than 15 calendar days after signature.

A2.3.3. Return one original of the signed agreement to the other party. Retain one signed original for USAFE-AFAFRICA. This original agreement will be provided to USAFE-AFAFRICA/A5/8 during Phase 4 - Reporting.

A2.4. Phase 4—Reporting.

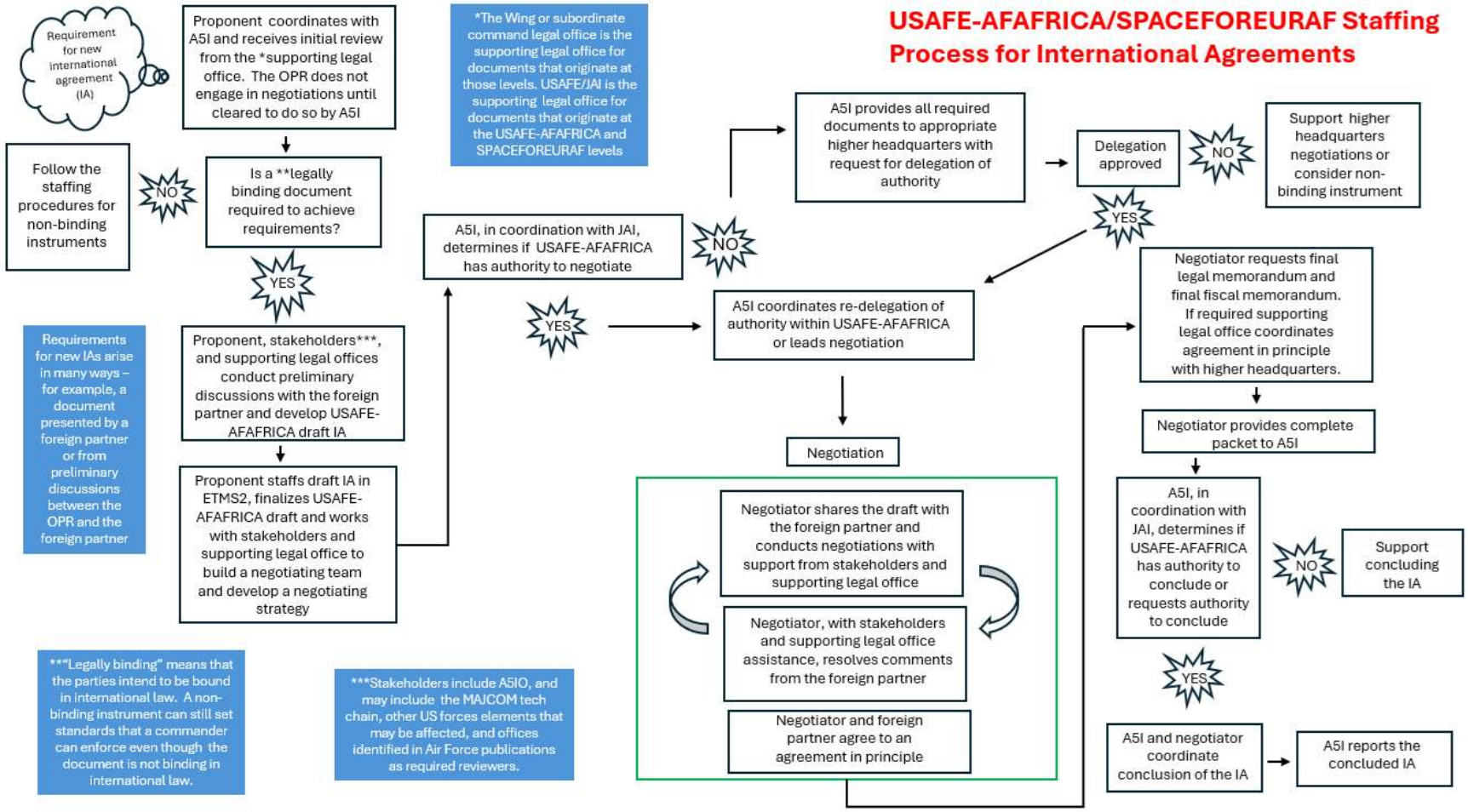
A2.4.1. Deliver the original agreement to USAFE-AFAFRICA/A5/8 within 3 days after the last signature. The agreement must arrive at the Office of the Assistant Legal Advisor for Treaty Affairs, Department of State, not later than 15 calendar days after signature of the agreement.

A2.4.2. USAFE-AFAFRICA/A5/8 reports the agreement in accordance with **Attachment 3**.

Attachment 3

INTERNATIONAL AGREEMENT STAFFING FLOWCHART

Figure A3.1. International Agreement Staffing Flowchart.



Attachment 4

NON-BINDING INSTRUMENT STAFFING FLOWCHART

Figure A4.1. Non-binding Instrument Staffing Flowchart.

